

By Senator Gibson

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1 A bill to be entitled
2 An act relating to intelligence-led policing; creating
3 s. 943.688, F.S.; defining terms; requiring law
4 enforcement agencies that use intelligence-led
5 policing to establish policies and procedures;
6 providing minimum requirements for such policies and
7 procedures; providing requirements for law enforcement
8 agencies that use intelligence-led policing; providing
9 an effective date.

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11 Be It Enacted by the Legislature of the State of Florida:

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13 Section 1. Section 943.688, Florida Statutes, is created to
14 read:

15 943.688 Intelligence-led policing; policies and procedures;
16 protections for targeted individuals.—

17 (1) As used in this section, the term:

18 (a) "Intelligence-led policing" means the cultivation and
19 dissemination of strategic, operational, and tactical
20 intelligence assessments to identify, quantify, and target key
21 criminals for investigation and prosecution.

22 (b) "Law enforcement agency" means an agency that has a
23 primary mission of preventing and detecting crime and enforcing
24 the penal, criminal, traffic, and motor vehicle laws of the
25 state and in furtherance of that primary mission employs law
26 enforcement officers.

27 (c) "Law enforcement officer" has the same meaning as in s.
28 943.10.

29 (d) "Targeted individual" means an individual who has been
30 identified by intelligence-led policing, based on an established
31 set of criteria, to be more likely than other individuals to
32 commit a future crime.

33 (2) A law enforcement agency that uses intelligence-led
34 policing to identify, quantify, and target individuals shall
35 establish policies and procedures that, at a minimum, must
36 include all of the following:

37 (a) General guidelines for the proper use, maintenance, and
38 storage of the data collected by intelligence-led policing
39 systems.

40 (b) Clear and specific goals for each program using
41 intelligence-led policing, including:

42 1. The types of offenses to be targeted and the timeframe
43 under which those offenses will be tracked;

44 2. The scoring system or criteria to be used in calculating
45 the likelihood of a targeted individual to commit a crime; and

46 3. Performance and supervisory expectations of the program.
47 (c) Guidelines for notifying a targeted individual that he

48 or she has been targeted, and publicly available procedures for
49 a targeted individual to appeal his or her identification as a
50 target.

51 (d) Guidelines for visits to targeted individuals,
52 including:

53 1. Any limitations on the number of visits within a certain
54 time period and the length of each encounter;

55 2. Any requirements for how or when body cameras or other
56 audio or video equipment are used; and

57 3. Requirements for reporting information collected at each
58 visit.

59 (e) A provision requiring that a targeted individual be
60 provided with community resource information.

61 (3) A law enforcement agency that uses intelligence-led
62 policing shall:

63 (a) Maintain accurate and up-to-date data about targeted
64 individuals, including:

65 1. Who is specifically being targeted, including:

66 a. Types of offenses;

67 b. Geographic area data, such as neighborhoods or
68 locations; and

69 c. Demographics, such as age, race, and gender of targeted
70 individuals;

71 2. How often a targeted individual has been visited and the
72 results of each of those visits; and

73 3. Whether a targeted individual has been provided
74 resources or additional assistance.

75 (b) Ensure that all personnel who use intelligence-led
76 policing are trained in the law enforcement agency's policies
77 and procedures.

78 (c) Retain audio and video data related to intelligence-led
79 policing interactions in accordance with the requirements of s.
80 119.021, except as otherwise provided by law.

81 (d) Perform periodic reviews of actual law enforcement
82 agency intelligence-led policing practices to ensure conformity
83 with the agency's policies and procedures.

84 (e) Advise a targeted individual of his or her status as
85 such, and of his or her right to appeal such status.

86 (f) Provide a targeted individual with community resource
87 information.

88 Section 2. This act shall take effect July 1, 2021.